

**IN THE LAHORE HIGH COURT, RAWALPINDI BENCH
JUDICIAL DEPARTMENT**

Case No: Criminal Misc. No. 1862-BC of 2013.

Muhammad Ihsan **Versus** Muhammad Shafiq Abbasi etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signatures of Judge and that of parties or counsel, where necessary.
	16.01.2014	Mr. Altaf Ellahi Shaikh, Advocate for the petitioner. Mr. Qaisar Mushtaq, ADPP and M. Saboor, SI along with record for the State. Through this single order, I propose to dispose of Crl. Misc. No. 1862-BC/2013 (Muhammad Ihsan v. Muhammad Shafiq Abbasi etc), Crl. Misc. No. 1863-BC/13 (Muhammad Ihsan v. Wajid etc), Crl. Misc. No. 1864-BC/13 (Muhammad Ihsan v. Muhammad Sadaqat etc) and Crl. Misc. No. 1865-BC/2013 (Muhammad Ihsan v. Muhammad Irshad Abbasi etc) as all these petitions arise out of one FIR. Petitioner seeks cancellation of bail granted to the respondents by the learned Additional Sessions Judge, Rawalpindi vide order dated 07.11.2013 in a case FIR No. 313/13 dated 18.07.2013 under sections 324/452/337-A(i)/337-L(ii)/147/149/109 PPC Police Station Murree District Rawalpindi. It was alleged by the petitioner that respondents along with their co-accused persons in prosecution of their common object entered into the house of the petitioner and committed murder assault upon Muhammad Zahid, brother of the complainant/petitioner.

2. The learned counsel for the petitioner has contended that the order of the learned Additional Sessions Judge is against the law & facts, perverse and based on erroneous facts and has failed to appreciate the material available on the record. Adds that respondents are named with specific roles, hence, they are not entitled to the concession of pre-arrest bail. Further contends that during the course of investigation, the respondents were found guilty and prima facie the case is made out against them. Adds that there was no malice on part of the petitioner to rope the respondents in this case and that the learned trial court granted the extra ordinary concession of pre-arrest bail in an unlawful manner and without application of judicious mind. Lastly contends that respondents are connected with the alleged offence so they are not entitled for the concession of pre-arrest bail hence, the impugned order dated 07.11.2013 is liable to be set aside.

3. The learned ADPP contends that the order passed by the learned Sessions Judge is well reasoned so the instant petition be dismissed.

4. I have heard the learned counsel for the parties and perused the record.

5. Bare reading of the FIR reflects that the respondents Muhammad Shafiq Abbasi, Awais Yaseen Abbasi & Muhammad Zaheer were not present at the place of occurrence rather they have been involved in the case under abetment. Tahir Sattar and Muhammad Zafar have been charged in the occurrence on the basis of aerial firing, whereas the offences with which respondents Saparas, Muhammad Raqeeb, Muhammad Zafar and Muhammad Aftab have been charged, are bailable

in nature and Muhammad Irshad also did not inflict any injury with any weapon. The allegation against rest of the respondents is general in nature and without any active participation and involvement of the respondents due to previous enmity as well as by throwing wider-net cannot be ruled out. The contention of the learned counsel for the petitioner that the learned trial court while passing the impugned order has discussed the merits of the case, which is not warranted under the law, is without substance because in the case of Meeran Bux v. The State and another (PLD 1989 SC 347) the Hon'ble Supreme Court has restored the order of the learned trial court in which the learned Sessions Judge, has discussed the merits while granting pre-arrest bail to the accused.

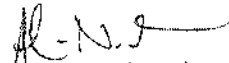
6. All the petitions for cancellation of bail in which certain circumstances should be in existence to indicate that the order was based on misreading and non reading of material placed before the court. Bail can be cancelled if the same has been granted in capricious manner either without assigning reasons or on the basis of perverse or invalid reasons. From bare reading of impugned order it reflects that the same is well versed, well reasoned and quite in accordance with law.

7. Over and above, there is no proof that respondents after their release on bail have misused the concession of bail. Learned counsel despite his best efforts could not point out any infirmity or irregularity, legal or factual, warranting interference with the impugned order dated 07.11.2013. It is well settled principle of law that considerations for the cancellation of bail are quite

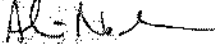
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different from the consideration for the grant of bail. Once a bail has been granted by the court of competent jurisdiction, while exercising its discretion in a judicious manner, there must be strong, exceptional and cogent reasons regarding misusing, abusing, hampering with the prosecution evidence and repetition of same offence are required as held by the Hon'ble Supreme Court of Pakistan in case of Muhammad Aslam v. Dilawar and others (2009 SCMR 1202).

8. For the foregoing reasons, I feel no hesitation in holding that the petitions are without merits and the same are hereby *dismissed*.


(Aalia Neelum)
Judge

Approved for reporting.


Judge

*Tariq